

Court No. - 3

Case :- WRIT - C No. - 16618 of 2021

Petitioner :- Ripu Daman

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Atul Kumar

Counsel for Respondent :- C.S.C.

Hon'ble Naheed Ara Moonis,J.

Hon'ble Saumitra Dayal Singh,J.

Let notice of the petition be served upon Shri Rajesh Yadav, by tomorrow.

Put up this case on 03.08.2021 as fresh showing the name of Shri Rajesh Yadav as counsel for the respondent no. 2.

Order Date :- 27.7.2021

Saurabh

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Case :- WRIT - C No. - 16618 of 2021

Petitioner :- Ripu Daman

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Atul Kumar

Counsel for Respondent :- C.S.C., Rajesh Yadav

Hon'ble Naheed Ara Moonis,J.

Hon'ble Saumitra Dayal Singh,J.

Heard Shri Atul Kumar, learned counsel for the petitioner; learned Standing Counsel for the State and Shri Rakesh Kumar Tripathi holding brief of Shri Narendra Kumar Tiwari, learned counsel for the respondent no.2.

On oral prayer, learned counsel for the petitioner is permitted to implead the Executive Engineer as respondent no. 4, during the course of the day.

Present petition has been filed against the impugned citation of electricity bill dated 14.10.2020 seeking electricity charges being Rs. 54,815/- due to the petitioner.

The only dispute raised in the present petition is to the correctness of the amount being claimed from the petitioner. At present, demand of Rs. 54,815/- has been made from the petitioner under the bill dated 06.11.2020.

Insofar as prayer made by the petitioner with respect to correction, is referable to provision of Clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005 (hereinafter referred to as the 'Code'), the present petition is ***disposed of*** with a direction, in case, petitioner complies with Clause 6.5(b)(ii) of the Code within a period of two weeks' from today and makes a deposit of Rs. 11,000/- before the respondent no. 4, the said authority may proceed to pass appropriate orders regarding correction, as prayed for within a period of two weeks' thereafter.

For a period of four weeks' from today or till the disposal of the petitioner's objection whichever is earlier, no coercive measure shall be adopted against the petitioner.

Order Date :- 3.8.2021

Saurabh